

Tentative Rulings
September 9, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

10. *Prieto v. Valta Energy LLC, et al*, Case No. CIVSB2513609
Plaintiff's MTC Further Responses to Requests for Production, Set 1
Plaintiff's MTC Further Responses to Special Interrogatories, Set 1
9/9/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Plaintiff's Requests for Judicial Notice: The Court would **GRANT** as to Exhibit 1, as to its existence, but not the truth of the matters stated therein. The Court would also **GRANT** as to Exhibit 2.

As to the Motions: The Court would **DENY** as untimely. The Court would **DENY** monetary sanctions.

Case Summary

This is a wage-and-hour class action. Plaintiff seeks to represent the putative class of non-exempt employees who worked for Defendants in California during the statutory period. He asserts that workers were subject to a number of wage-and-hour concerns, and, as such, on May 14, 2025, he filed the instant complaint alleging violations related to (1) minimum wages; (2) overtime wages; (3) the provision of meal periods; (4) the provision of rest breaks; (5) reimbursements; (6) accurate wage statements; (7) final pay; as well as (8) violation of the unfair competition law (UCL). Notably, the UCL claim is underpinned by the purported wage-and-hour violations.

Relevant here, Plaintiff served the at-issue discovery on February 11, 2026. (Szilagyi Decl., ¶4.) On March 17, 2026, Defendant served objection-only written responses. Because of informal discussions attempting to resolve the disputes, the parties agreed in writing to extend the motion to compel deadline to June 12, 2026. (*Id.*, ¶11, Exh. C.) Prior to that deadline, on June 3, 2026, Plaintiff requested an informal discovery conference (IDC), which was held on June 15, 2026. (*Id.*, ¶¶12-13.) The motions were filed on June 24, 2026, nine days after the IDC and twelve days after the agreed deadline.

Analysis

The motions appear untimely since the parties agreed that the deadline to file was June 12, 2026, and Plaintiff instead filed on June 24, 2026.

Plaintiff, for his part, argues that the Court should find that Plaintiff's deadline was stayed pending the IDC pursuant to his interpretation of the "GUIDELINES FOR THE COMPLEX LITIGATION PROGRAM" (*Guidelines*). Notably, Department S17 also maintains its own "INITIAL CASE MANAGEMENT CONFERENCE ORDER" (*Department CMO*).

Plaintiff highlights that the *Guidelines* document states "[m]aking a request for an informal conference automatically stays the deadline for filing a motion." (RJN, Exh. 1, p.5 [emphasis].) By contrast, the *Department CMO* only indicates that motions concerning discovery cannot be filed without first requesting an IDC with the court. (RJN, Exh. 2, p.7:16-18.) The *Department CMO* does not indicate any such automatic stay on filing deadlines. Importantly, the *Guidelines* document also expressly states: "Below are guidelines only. Judges may or may not choose to follow all or some of these guidelines. Check with the individual department." (*Guidelines*, p.1 [Guidelines Notice].) Thus, the *Guidelines* are not mandatory, and the *Department CMO* governs.

Relevant here, the statute that previously permitted courts to conduct IDCs and toll the 45-day deadline was repealed as of January 1, 2023. (See Code Civ. Proc., § 2016.080.) In that light, even though the *Guidelines* suggest an automatic stay, the law appears fairly clear that the 45-day deadline is mandatory and jurisdictional. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410; *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745 [“The failure to make this motion within the specified period constitutes a waiver of any right to compel a further discovery response.”].)

While some departments may consider the inherent control over complex discovery as a basis to continue allowing such an automatic stay, this department – pursuant to its *Department CMO* – declined to follow that lead. The discovery statutes are clear that the only means for an extension of the 45-day deadline is by the parties mutually agreeing in writing to the extension. The statutes and case law do not appear, in this Court’s estimation, to permit a court to unilaterally stay or extend that deadline. This is precisely the reason why the *Department CMO* deviates from the *Guidelines* in this respect.

Finally, the Court notes that, even if the motions were timely, they appear mostly moot: Defendant served supplemental discovery responses to SROG1, numbers 2 and 3, as well as to RFP1, numbers 1, 2, 4, and 6-9, and produced 175 pages of documents. (Schnayerson Decl., ¶11, Exh. C.) In the reply, Plaintiff acknowledges this. Plaintiff also states that Defendant might produce additional information that could resolve the motions in their entirety.

11. *Serna v. QQ Service Corp., et al*, Case No. CIVSB2605711

Defendants’ Motion to Compel Further Responses to Form Interrogatories, Set One
Plaintiff’s Motion to Compel Further Responses to Requests for Production, Set Two
9/9/26, 9:00 a.m., S-17

CONTINUE the matter to allow satisfaction of the meet-and-confer requirements.

Here, Defendants Ayala and Alan Lem & Co, Inc. have moved for further response to their first set of Form Interrogatories (FROG1). Scheduled for hearing on this same date, Plaintiff moved for further response to its second set of Requests for Production (RFP2). Neither motion has satisfied the meet-and-confer requirement.

Prior to discovery motion, a party is required meet and confer “in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (See Code Civ. Proc., § 2016.040 [emphasis added]; also Code Civ. Proc., §§ 2030.300 [interrogatories] & 2031.310 [RFPs].)

Here, the supporting documents assert only that the counsel wrote each other. (See, e.g., Jackson Decl., ¶¶4-6 [letter and two emails]; Innabi Decl., ¶¶7-11 [emails].) It does not appear that the parties met and conferred in person, by telephone, or by video conference, as required by Code. The Court will require supplemental declarations confirming satisfaction of the Code prior to the next hearing date.
